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CIRCULAR TO ALL BANKS AND OTHER FINANCIAL INSTITUTIONS

RE: GUIDELINES ON MANAGEMENT OF DORMANT ACCOUNTS, UNCLAIMED BALANCES AND OTHER FINANCIAL ASSETS IN BANKS AND OTHER FINANCIAL INSTITUTIONS IN NIGERIA

The Guidelines on the Management of Dormant Accounts, Unclaimed Balances, and Other Financial Assets in Banks and Other Financial Institutions in Nigeria (2024) mandate banks and Other Financial Institutions (OFIs) to implement specific measures and disclosures relating to dormant accounts, unclaimed balances, and other financial assets. These requirements are intended to enhance transparency, facilitate reunification of funds with their rightful owners, and ensure full compliance with applicable legal and regulatory frameworks.

The Central Bank of Nigeria (CBN) hereby issues the following directives:

1. REACTIVATION OF DORMANT ACCOUNT

i. In addition to in-person submission of reactivation request required in Section 8.0 (i), banks and OFIs shall adopt alternative approaches to receive request for reactivation provided that such institutions implement appropriate risk management strategies as well as identification, and verification measures sufficient to ensure that the individual making the request is duly authenticated as the person he/she purports to be.

ii. Further to representations received from stakeholders, the CBN hereby rescinds the requirement under Section 8.0 (ii) for the mandatory use of affidavits in the reactivation of dormant accounts. Notwithstanding this recission, banks and OFIs shall continue to apply enhanced due diligence by implementing robust safeguards to verify the accuracy and authenticity of customer information during dormant account reactivation.

For the avoidance of doubt:

i. Affidavits are no longer required for reactivating dormant accounts that have not been transferred to the UBTF Pool Account.

ii. This rescission does not extend to the reclaiming of funds already transferred to the UBTF Pool Account, where affidavits remain mandatory under Section 9.0 (iii).

2. DISCLOSURE ON WEBSITES

All banks and OFIs shall **ONLY** publish the following information concerning dormant accounts not yet transferred to the UBTF Pool Account and unclaimed balances already transferred to the UBTF Pool Account on their operational websites:

i. Name(s) of the authorised account holder(s);
ii. Type of account;
iii. Name of the bank or financial institution;
iv. Branch address where the account is domiciled.

Banks and OFIs without active websites shall ensure that the required information is published on the official websites of their respective industry associations.

3. ADDITIONAL PUBLICATION REQUIREMENTS

In addition to '2' above, banks and OFIs shall publish the mandated information annually in at least two (2) national daily newspapers. Where the publication will exceed two full pages, financial instituions are advised to publish a single-page notice in atleast two national daily newspapers directing customers to a dedicated easily searcheable section on their corporate websites containing the full list of dormant accounts.

Notwithstanding the above, state and unit microfinance banks shall publish the information required provided for in '2' above in all their business locations but are not required to publish the information in any national daily newspaper.

4. CLARIFICATION ON DATA PROTECTION REGULATIONS

Following enquiries regarding compliance with the Nigeria Data Protection Act, 2023 (NDPA), banks and OFIs are reminded that:

i. Section 25(1)(b) (ii–iii) of the NDPA permits the processing of personal data when necessary for:
   a. Compliance with a legal obligation; and
   b. Protection of the vital interests of the data subject or another person.

ii. Section 72(11) of the Banks and Other Financial Institutions Act, 2020 (BOFIA) empowers the CBN to issue guidelines on the administration of unclaimed funds in banks, specialised banks, and other financial institutions.

Accordingly, the required disclosures are legally justified and fully consistent with the applicable provisions of the NDPA and BOFIA.

This Circular supersedes the earlier circular dated February 17, 2025 (Ref No.: FPR/DIR/PUB/CIR/001/004) and takes immediate effect.

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